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The Bharatiya Nagarik Suraksha Sanhita (BNSS)

“Author By Namma Kanoonu Academy®

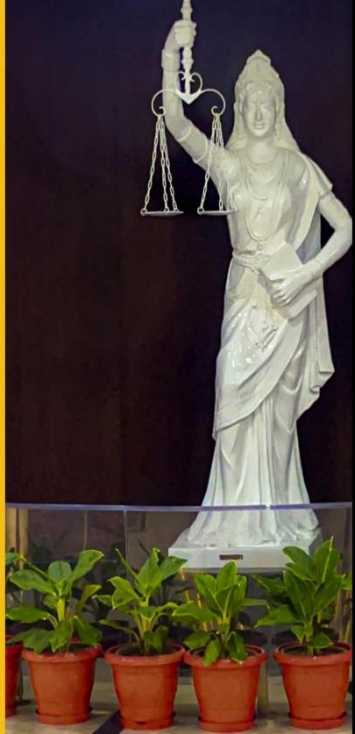


Prepared as per the syllabus prescribed by Karnataka State Law University (KSLU), Hubballi

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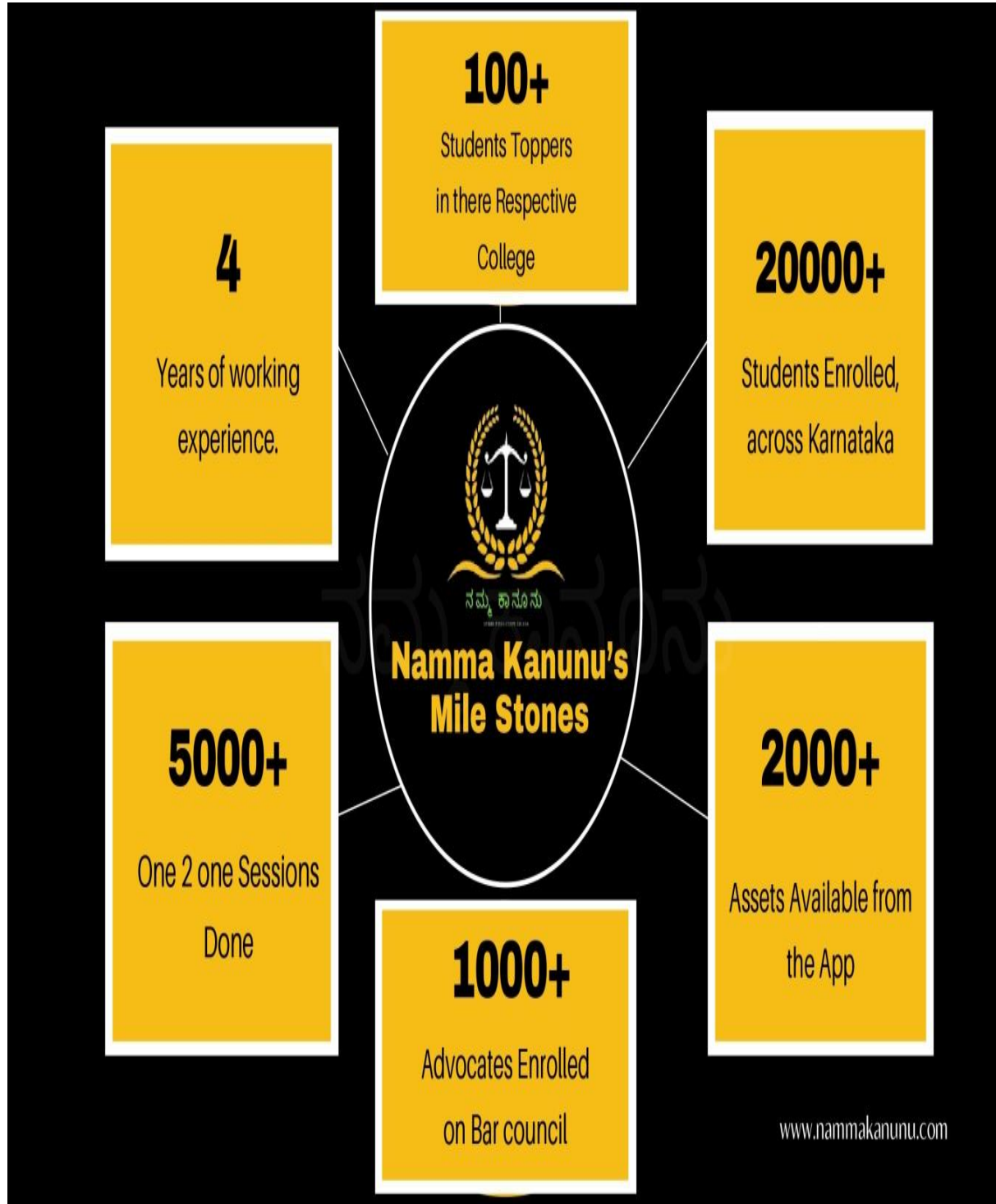
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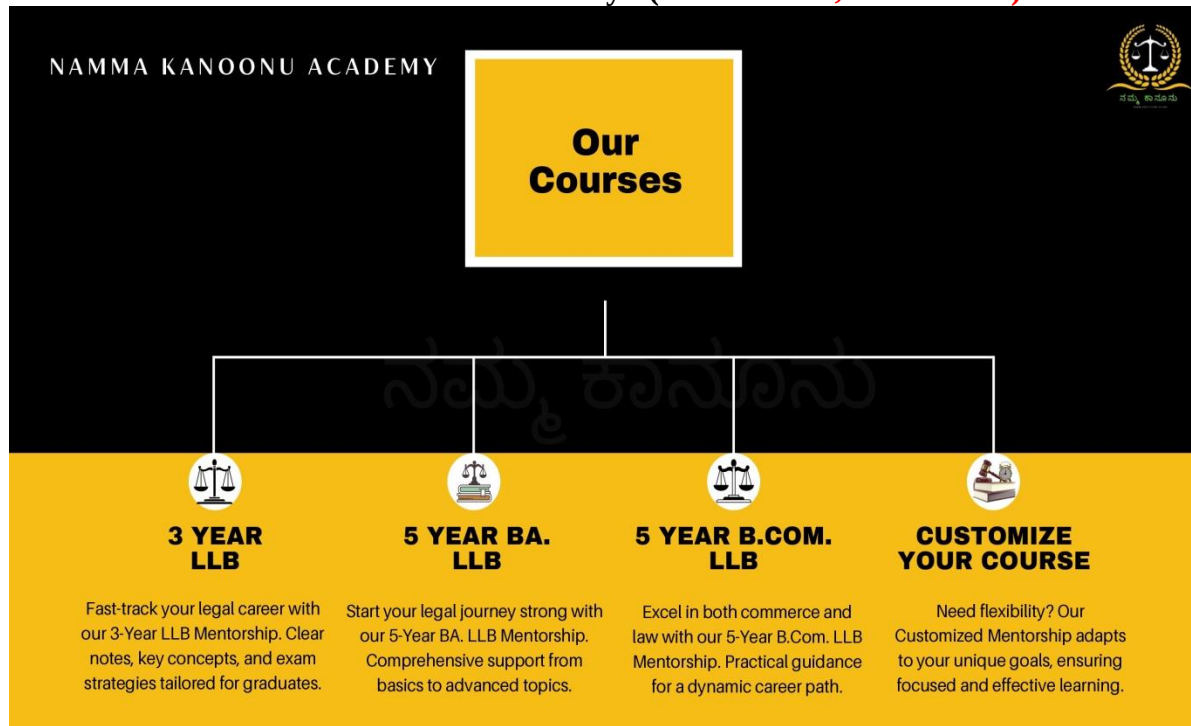
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JUSTICE, social, economic and political;

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UNIT	CONTENT	PAGE NO.
	• Introduction ; Meaning and importance of criminal procedure; Background and salient features of Bharatiya Nagarik Suraksha Sanhita including its Constitutional dimensions; • Definitions and classification of offences- Bail, Bail bond, Bond, Audio-Video Electronic Means, Victim, Investigation; • Replaced provisions relating to Organisation, Functions, Duties and Powers of Courts, prosecution and Police under BNSS. • Initiation of criminal case- First Information Report, Zero FIR, Investigation powers, Preliminary Inquiry, Complaint;	
	Pre -Trial Process and Commencement of Proceedings • Magisterial power to take cognizance and timelines to complete the proceedings; • Dismissal of complaints; • Commencement of proceedings; • Framing of Charge and joinder of charges; • Process to compel appearance and production of things- Use of electronic means, securing presence of successor; • Preliminary pleas under the Sanhita- Plea of guilt, limitation for taking cognizance of offences; • Provisions as to Bail and Bonds.	
	Trial Process • Trial before Court of Sessions; • Trial of Warrant and Summons cases by Magistrates; • Summary Trials - Significance; • Evidence and General Provisions as to inquiries and trials; • Compounding of offences and Plea bargaining; • Concurrent and consecutive running of Sentences; • Appeals, Revision and Reference;	

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	• Security for keeping peace and good behavior; • Maintenance - Alteration and Enforcement.	
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UNIT I

SYLLABUS

- **Introduction** ; Meaning and importance of criminal procedure; Background and salient features of Bharatiya Nagarik Suraksha Sanhita including its Constitutional dimensions;
- **Definitions** and classification of offences- Bail, Bail bond, Bond, Audio-Video Electronic Means, Victim, Investigation;
- Replaced provisions relating to Organisation, Functions, Duties and Powers of Courts, prosecution and Police under BNSS.
- Initiation of criminal case- First Information Report, Zero FIR, Investigation powers, Preliminary Inquiry, Complaint;
- Arrest-Concept, procedure and safeguards, Proclamation, Information regarding arrested persons, Handcuffing.

INTRODUCTION

- **Meaning and importance of criminal procedure**
- The Bharatiya Nagarik Suraksha Sanhita, 2023 (hereinafter referred to as BNSS) shall replace the Criminal Procedure Code, 1973 (CrPC) and shall come into force on July 01, 2024.
- **The Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS)** seeks to ensure speedy justice bring transparency and accountability in investigation make criminal justice system more victim centric.

SALIENT FEATURES OF BNSS:

- **Specific timelines for investigation and trial** BNSS prescribes specific timelines for different aspects of investigation and trial in order to ensure speedy justice.
- **Audio-Video recording of search** BNSS mandates audio-video recording of search and seizure to bring in greater transparency during investigation.

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- **Attachment of Property during investigation** The property of criminals, which is deemed to be proceeds of crime, can be attached by the Court. Such proceeds of crime shall be distributed among the victims. This would not only create greater deterrence for crime but would also provide some pecuniary relief to the victims of crime.
- **In-absentia trial of Proclaimed offender BNSS** provides for in-absentia trial of proclaimed offenders.

DEFINITIONS

- **Section 2(1) of the BNSS contains definitions of certain terms used in the legislation. Section 2(1) gives the following new definitions which were not there in Cr.PC:**
 - ✓ Audio video electronic means [Section 2(1)(a)]
 - ✓ Bail [Section 2(1)(b)]
 - ✓ Bail bond [Section 2(d)]
 - ✓ Bond [Section 2(1)(e)]
 - ✓ Electronic communication [Section 2(1)(i)]

■ "Bail" [Section 2(1)(b) of BNSS].

- [Section 2(1)(b) of BNSS defines bail to mean release of a persona of or suspected of commission of an offence from the custody of law of conditions imposed by an officer or Court on execution by person of a bond or a bail bond

■ "Bail Bond"[Section 2(1)(d) of BNSS] .

- Section 2(1)(d) of BNSS defines 'bail bond' to mean an undertaking release with surety .

■ "Bond" [Section 2(1)(e) of BNSS]

- Section 2(1)(e) of BNSS defines 'bond' to mean a personal bond undertaking for release without surety.

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▪ **Audio video electronic means [Section 2(1)(a)] of BNSS**

- Section 2(a) of the BNSS defines "audio-video electronic means"

• **In BNSS, unless the context otherwise requires, the term "audio-video electronic means' shall include use of any communication device for the purposes of –**

- ✓ Video conferencing.
- ✓ Recording of processes of identification.
- ✓ Search and seizure or evidence.
- ✓ Transmission of electronic communication, and .
- ✓ For such other purposes and by such other means as the state government may, by rules provide .

▪ **VICTIM [Section 2(1)(X)] of BNSS**

- ✓ means a person who has suffered any loss or injury caused by reason of the act or omission for which the accused person has been charged and includes the guardian or legal heir of such victim;

▪ **INVESTIGATION [Section 2(1)(J)] of BNSS**

- ✓ includes all the proceedings under this Sanhita for the collection of evidence conducted by a police officer or by any person (other than a Magistrate) who is authorised by a Magistrate in this behalf.

➤ **Rights of an Arrested person :**

- **The rights of an arrested person are as following as :**
- **Rights to Remain Silent** :According to Article 20(3) "No man accused of any offence shall be compelled to be a witness against himself."
- The doctrine of Self Incrimination also states three things:

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1. The accused is presumed to be innocent.
2. It is for the prosecution to establish his guilt.
3. The right that one cannot detain someone for over 24 hours without judicial scrutiny.

- **Right to know the grounds of arrest**

- Article- 22(1) of the Indian Constitution stipulates that no police official can arrest any individual without informing the accused the reason/ ground of his detainment/ arrest.
- The right to get information is a fundamental right. As per Section 48 of the Bhartiya Nagarik Suraksha Sanhita 2023, any person who has been arrested without a warrant should know the full details for which he is being arrested or other grounds for such arrest.

- **Right to get bail**

- As per Section 48 of the Bhartiya Nagarik Suraksha Sanhita 2023 if any person is arrested without a warrant in bailable offences, the police officer has the duty to inform the arrested person that he is entitled to be released on bail and that he may arrange for sureties on this behalf.

- **Right to get speedy and fair trial**

- Article 21 of the Constitution of India guarantees a right to personal liberty which includes the right to a speedy and fair trial. The state should not keep an arrested person in jail unnecessarily.
- **"Huissainara Khatoon v/s Home Secretary, State of Bihar"** where the court observed that, "the trial must be disposed of as diligently as possible"
- **Right to be taken to magistrate without delay** : Article- 22(2) of the Indian Constitution stipulates that the police official making an arrest must

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produce the arrested person before the Magistrate within 24 hours of the
arrest and failing to do so would make him liable for wrongful detention.

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UNIT II

Syllabus

Pre -Trial Process and Commencement of Proceedings

- Magisterial power to take cognizance and timelines to complete the proceedings;
- Dismissal of complaints;
- Commencement of proceedings;
- Framing of Charge and joinder of charges;
- Process to compel appearance and production of things- Use of electronic means, securing presence of successor;
- Preliminary pleas under the Sanhita- Plea of guilt, limitation for taking cognizance of offences;
- Provisions as to Bail and Bonds.

Q. Explain the procedure regarding the granting of bail in cases of bailable and non-bailable offences.

• Introduction

- Article 21 of the Constitution of India guarantees the protection of life and personal liberty to all persons. It guarantees the fundamental right to live with human dignity and personal liberty, which in turn gives us the right to ask for bail when arrested by any law enforcement authority.

1. Bail in Bailable Offence:

- Regular Bail Section 478 for bail provision in BNSS (Section 436 of CrPC):

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- In other words, it provides the circumstances when a person gains the right to be released on bail in cases of bailable offences. Another positive aspect is the special provision regarding bail for indigent persons unable to furnish surety, to be discharged on executing bond for appearance.
- **Case Law: Vaman Narayan Ghiya vs the State of Rajasthan:** The apex court has held that no jurisdiction lies to any court while granting bail under section 436 CrPC except asking for security.
- In **Gurbaksh Singh v. State of Punjab 1980**, the SC held that grant of bail means **to set at liberty a person arrested or imprisoned on security being taken off his appearance in the court on a particular day**. The word 'bail' covers release on one's own bond.

Anticipatory Bail under BNSS:

- **The provision for Bail under Section 438 of CrPC has been restored through Section 482 under the BNS.**
- In case of a FIR being lodged for a non-bailable offence, person who apprehends an arrest should immediately apply for Anticipatory Bail. Anticipatory bail is a direction to release a person on bail, issued even before the person is arrested.
- **When can a person apply**
- When any person apprehends that there is a move to get him arrested on false or trump up charges, or due to enmity with someone, or he fears that a false case is likely to be built up against him, He has the right to move the court of Session or the High Court under **Section 482** of the code of Criminal Procedure for grant of bail in the event of his arrest, and the court may, if it thinks fit, direct that in the event of such arrest, he shall be released on bail.
- **Conditions that may be imposed by the court**
 - The High Court or the Court of Session may include such conditions in the light of the facts of the particular case, as it may think fit, including:

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- a) a condition that the person shall make himself available for interrogation by the police officer as and when required;
 - b) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the court or to any police officer;
 - c) a condition that the person shall not leave India without the previous permission of the court.
-
- The Supreme Court in **Lavesh vs. State (NCT of Delhi) ((2012) 8 SCC 730)** held that "Normally, when the accused is "absconding" and declared as a "proclaimed offender", there is no question of granting anticipatory bail. We reiterate that when a person against whom a warrant had been issued and is absconding or concealing himself in order to avoid execution of warrant and declared as a proclaimed offender in terms of Section 82 of the Code he is not entitled to the relief of anticipatory bail."
 - **Bail on Arrest:**
 - This is filed after the arrest of the accused person. Under Section 480 of BNSS, the arrested person can approach the court for bail.
 - **Bail for Convict:**
 - This is filed post-conviction by the court, and an appeal lies against the same. When the accused has been convicted by the court and has preferred an appeal, the accused can apply to the appellant court for bail.
 - **Default Bail:**
 - When the charge-sheet is not filed in the court within the prescribed time period or in other words, the investigation remained incomplete within the stipulated time period; the accused is entitled to default bail.
 - **Interim Bail:**

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- **Lal Kamlendra Pratap Singh vs State of U.P. and Ors. (2009):** Interim bail is nowhere defined in CrPC. The concept of interim bail was started by the Hon'ble Supreme Court in 2009, stating that interim bail be granted pending disposal of bail application because arrest and detention of a person may cause irreparable loss.
- **Cancellation of Bail:**
- The Court of Session and the High Court have concurrent jurisdiction to cancel bail under Section 483(3) of the BNSS. If bail is granted by a magistrate, the aggrieved party can file a cancellation application before the Court of Session or the High Court.
- If the accused violates any of the conditions prescribed by the court. The petition for cancellation of bail can be filed by the state or the party aggrieved in the court.



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UNIT-III

SYLLABUS

Trial Process

- Trial before Court of Sessions;
- Trial of Warrant and Summons cases by Magistrates;
- Summary Trials - Significance;
- Evidence and General Provisions as to inquiries and trials;
- Compounding of offences and Plea bargaining;
- Concurrent and consecutive running of Sentences;
- Appeals, Revision and Reference;
- Security for keeping peace and good behavior;
- Maintenance - Alteration and Enforcement.

➤ Appeals, Revision and Reference;

Q.Explain the types of appeals in criminal cases.

• Introduction

Appeal is a **complaint to a superior court** of an injustice done or error committed by an inferior court, whose judgement or decision the Court calls upon to correct or reverse.

- Appeals under [Bharatiya Nagarik Suraksha Sanhita, 2023 \(BNSS\)](#) is placed under **Chapter XXX from Section 413 to 435.**
- 413. Provided that the victim shall have a right to prefer an appeal against any order passed by the Court acquitting the accused or convicting for a lesser offence or imposing inadequate compensation, and such appeal shall

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lie to the Court to which an appeal ordinarily lies against the order of conviction of such Court.

- **Types of Appeals**

- **Appeal in Court of Session:** : under section 414 of briss Right of Appeal: Any person aggrieved by an order requiring security or imprisonment may appeal to the Court of Session.
- **Appeal from Convictions:** Section 415 of the bnss offers different appeal routes for convictions:
- **Convictions by a High Court** (under its extraordinary original criminal jurisdiction) can appeal directly to the Supreme Court.
- **Convictions by a Court of Session** or Additional Court of Session can appeal to the respective High Court.
- **Convictions by Lower Courts** (like Metropolitan Magistrates, Assistant Sessions Judges, or Magistrates of the first or second class), including sentences under Section 364 or orders under Section 401 of the bnss, can appeal to the Court of Session.
- **State Appeals:** The State Government has specific provisions for appeals. Section 418 allows the State to appeal for the enhancement of a sentence imposed by a lower court. Conversely, under Section 419, the State can appeal against the acquittal of an accused person by a lower court.
- **Appeal Against Conviction by High Court in certain cases:** Section 420 of BNSS allows for appeals in specific cases by the accused. If a High Court overturns an acquittal and convicts someone, sentencing them to death, life imprisonment, or ten years or more, the accused has the right to appeal to the Supreme Court.
- **Special Right of Appeal in certain cases:** Section 421 of the BNSS grants a special right of appeal to an accused under specific circumstances. If one co-accused receives a sentence that can be appealed, the accused who received a non-appealable sentence also gains the right to appeal.

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Time Limit

- 30 days: Appeal against conviction or sentence
- 60 days: Appeal against acquittal
- 90 days: Appeal against sentence of death

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UNIT- IV

Syllabus:

Miscellaneous Procedure:

- ✓ Judgement
- ✓ Transfer of cases
- ✓ Execution, suspension, remission and commutation of sentences and mercy Petition
- ✓ Disposal of Property-photography, videography and time bound release
- ✓ Irregular Proceedings
- ✓ Protection of victims-Compensation and Treatment

Previous year Questions:

- (1) Write a short note on Judgement?
- (2) What are the transfer of cases ?

- ✓ Judgement
- ✓ Transfer of cases

Q1. Write a short note on Judgement?

JUDGMENTU/S SECTION 392

Introduction:

"The people's good law is the highest law"-Cicero

Judgement is a basic term used in our daily lives. Generally, it means analysing a certain situation and forming a notion thereafter.

In a legal sense, judgement is the decision given by the Court, after hearing both sides, it contains reasons for reaching such a conclusion.

Object and scope:

Chapter XXIX of the The Bharatiya Nagarik Suraksha Sanhita, 2023, deals with Judgement. However there is no definition of "judgement" present in the Code, but it is to be understood as the final order of the Court. In the case of Ismail Amir Seikh vs. the State of Maharashtra, it was held that a judgment is the act of judging. It was pointed out that judgment should clearly mention the reason for accepting an argument and rejecting the other.

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Provisions with regard to Judgement under BNSS:

- **Section 392 of BNSS talks about Judgment, Procedure for Pronouncement, Delivery, along with Duty of accused to attend the pronouncement.**

The judgment in every trial in any Criminal Court of original jurisdiction shall be pronounced in open Court by the presiding officer immediately after the termination of the trial or at some subsequent time of which notice shall be given to the parties or their advocates,

- **by delivering the whole of the judgment, or**
- **by reading out the whole of the judgment; or**
- **by reading out the operative part of the judgment and explaining the substance of the judgment in a language which is understood by the accused or his advocates.**

If the accused is in custody, he shall be brought up to hear the judgment pronounced.

- **393 (Language and contents of judgment. the judgement)** should be made in the official language of the respective court.
- **395 Order to pay compensation.:** power of the court to demand compensation from the accused with regard to the losses incurred by the other party to the suit. Such compensation may be for the costs of the proceeding, compensation for causing harm, injury or death, etc.
- **399 Compensation to persons groundlessly arrested.**

If a person gets arrested due to another person registering a false complaint against such a person. with the police. Then the court shall order such a person who posted the complaint to pay compensation which shall not exceed one thousand rupees, to the person so arrested.



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Q4. What are the execution, suspension, remission and commutation of sentences?

Introduction:

In the legal landscape of India, the Execution, Suspension, Remission, and Commutation of Sentences hold paramount importance. This intricate process is governed by constitutional and statutory provisions, with the Indian Constitution of 1950 providing authority to the Governor and the President through Article 72 and Article 161. Simultaneously, the Criminal Procedural Code of 1973 dedicates an entire chapter, Chapter XXXII, to the Suspension, Remission, and Commutation of Sentences.

Object and Scope of the Topic

The power to Remit, Suspend, or Commute a sentence lies with the head of the state, and this executive authority aims to show mercy to a convict through various means. The objective is to consider aspects of a case that might not have surfaced during the court proceedings. Applicable throughout India, this chapter in the Criminal Procedural Code reflects a broader perspective on the nuances of sentencing.

CAPITAL SENTENCE EXECUTION

Execution of Sentence of Death (section 453) The process of executing a death sentence involves intricate steps outlined in the BNSS. Section 453 explicitly mandates that a session judge cannot execute a death sentence without the High Court's confirmation. The High Court, under Section 455, can confirm the sentence, annul the conviction, or order fresh proceedings. Any order from the High Court must be executed by the Session Court through the issuance of a warrant.

- **Execution of Sentence of Death Passed by High Court (section 454)**

Section 454 further specifies that if the High Court passes a death sentence on appeal or revision, the Session Court is obligated to carry out the order by issuing a warrant. The jail superintendent plays a crucial role in conveying information regarding confirmation or annulment to the Sessions Judge.

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- **Postponement of Execution of Death Sentence (section 455)**

In cases of appeal to the Supreme Court, Section 455 allows the High Court to order the postponement of the execution of a death sentence until the Supreme Court appeal is disposed of. This provision safeguards the rights of the accused during the appellate process.

- **Postponement of Capital Sentence on a Pregnant Woman (section 456)**

Section 456 provides the High Court with the authority to postpone or commute the sentence of a pregnant woman, showcasing a compassionate approach to specific cases.

- **Execution of Sentences of Imprisonment (section 457)**

Section 457 details the execution process for sentences of imprisonment. The court must issue a warrant specifying the place of confinement, and in cases where the accused is absent during sentencing, the court can order their arrest to initiate the sentence.



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THE CONSTITUTION OF INDIA

PREAMBLE

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a '**[SOVEREIGN, SOCIALIST SECULAR DEMOCRATIC REPUBLIC]** and to secure to all its citizens:

JUSTICE, social, economic and political;
LIBERTY of thought, expression, belief, faith and worship;
EQUALITY of status and of opportunity; and to promote among them all
FRATERNITY assuring the dignity of the individual and the '[unity and integrity of the Nation];

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1. Subs. by the Constitution (Forty-second Amendment) Act, 1976, Sec. 2, for "Sovereign Democratic Republic" (w.e.f. 3.1.1977)
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UNIT V

Syllabus:

- The Juvenile Justice (Care and Protection of Children) Act, 2015
- Salient features, the Juvenile Justice Board
- Composition, Powers and Functions
- Procedure relating to Children in conflict with Law
- Children in need of Care and Protection and their rehabilitation,
- Child Welfare Committee.
- The Probation of Offenders Act, 1958
- Salient features, Power of Court to release certain offenders on probation/ good conduct
- Power of Courts to require released offenders to pay compensation and cost
- Appeal and Revision.

Previous Year Questions

1. What is the Juvenile Justice (Care and Protection of Children) Act, 2015?
2. What are the salient features of the Juvenile Justice Board?

- The Juvenile Justice (Care and Protection of Children) Act, 2015
- Salient features, the Juvenile Justice Board
- Composition, Powers and Functions

The Juvenile Justice (Care and Protection of Children) Act, 2015

The Juvenile Justice Act (IJA) pertains to provisions for children found in conflict with the law in India. It also gives provisions for children in need of care and protection.

The Juvenile Justice (Care and Protection of Children) Amendment Bill, 2018 had been introduced in the Lok Sabha. Its aim is the amendment of the Juvenile Justice (Care and Protection of Children) Act, 2015.

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Salient Features of the Juvenile Justice Act 2015

- Redefines a juvenile as a person below 18 years of age, in congruence with CRC. The earlier law defined a juvenile as a person below 16 years.
- Provides for offender and victim rehabilitation through Individual care and reintegration. It aims for correction, not mere punishment of juvenile offenders.
- Mandates setting up of Child Welfare Committees for producing of children before it within 24 hours of apprehension,
- Provides for setting up of Juvenile Justice Boards. This focuses on speedy trial and individual care and rehabilitation of juvenile offenders.
- Includes provision for adoption of children, both in and out of marriage. It regulates inter-country adoptions.
- Stipulates setting up of Special Homes for rehabilitation of juvenile offenders between 16-18 years of age.
- Specifies 14 fast-track courts for expeditious disposal of cases related to children. This includes cases of missing children and child victims of abuse.
- Includes provision for a Central Adoption Resource Authority. This works to issue a no-objection certificate for inter-country adoption.
- For every district, at least one institution is to be set up for giving "shelter care" to juveniles in crisis.
- Lays down stricter punishments for offences against children. This includes child labour, using children for begging, and sexual offences against children.

Q1.What is the Juvenile Justice (Care and Protection of Children) Act, 2015?

Introduction:

This act defines a child as anyone who has not completed 18 years of age. The Act repealed the Juvenile Justice Act, 2000 and provides for the functions, serious penalties, and roles of the Juvenile Justice Board (JJB) and the Child Welfare Committee (CWC) in addressing juvenile crimes.

Object, Application and definitions under the Act

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The Juvenile Justice (Care and Protection of Children) Act, 2015 is an important piece of legislation in India that addresses the legal framework for the care, protection, and rehabilitation of children in conflict with the law and children in need of care and protection. The Act primarily seeks to ensure that the rights and interests of children are protected and that they are provided with appropriate care and support.

Objectives:

- The primary objective of the Act is to provide for a comprehensive legal framework for dealing with children who come into conflict with the law and for children in need of care and protection.
- It aims to establish a child-friendly approach to the justice system, focusing on the rehabilitation and reintegration of children in conflict with the law rather than punitive measures.
- The Act is based on the principles of the best interests of the child, non-stigmatization, and the dignity and worth of the child.

SALIENT FEATURES

1. Definition of Child: A child means a person who has not completed 18 years of age (Section 2(12)).
2. Juvenile Justice Board (JJB): Established in every district to deal with cases of juveniles in conflict with law (Section 3).
3. Child Welfare Committee (CWC): Established in every district to deal with cases of children in need of care and protection (Section 27).
4. Rehabilitation and Reintegration: Emphasis on rehabilitation and reintegration of children into society (Sections 14-16).
5. Sentencing Options: Sentencing options include community service, counseling, and institutional care (Sections 18-20).
6. Adoption: Simplified adoption procedures for orphans, abandoned, and surrendered children (Sections 56-58).
 7. Preliminary Assessment: Preliminary assessment of the child's mental and physical capacity to commit an offense (Section 10).
 8. Age Determination: Age determination through medical examination or other methods (Section 11).
 9. Child-Friendly Procedures: Child-friendly procedures for investigation, inquiry, and trial (Section 2(14)).

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10. Training and Capacity Building: Training and capacity building for JJB, CWC, and other stakeholders (Section 47).

11. Section 75-77: Penalties for cruelty, abandonment.

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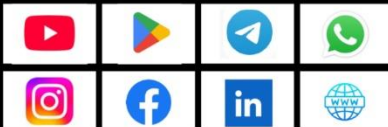
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